

Plaintiff filed Proof of Service of Summons on May 7, 2026 indicating that Defendant was served by personal service on May 5, 2026 at 5:34 p.m. with the note “I delivered the documents to Jacob Lickliter with identity confirmed by subject stating yes when named. The individual accepted service with direct delivery. The individual appeared to be a white male contact 45-55 years of age, 6’0”-6’2” tall and weighting 200-240 lbs.” Service was accomplished by Kristie Butler who checked Item 7.e.(1) indicating that she is not a registered California process server. The Proof of Service of Summons was signed under penalty of perjury on May 5, 2026 and complies with CCP § 2015.5.

In the moving papers, Defendant argues that he was not home at the alleged time of service and that the documents were actually served on his wife. This is not provided in his declaration. Instead, Defendant provides that he “was not served in the matter described in the Proof of Service.” *Defendant Decl.* ¶ 6. Defendant does not state how or when he received the papers. His declaration focuses on his employment with Corinth Coca-Cola Bottling Group and the Motus Application. A screenshot of his Motus Application is provided that Defendant asserts provides a portion of his afternoon on May 5, 2026 and shows that he did not arrive home from work until 6:00 p.m.

In the Reply, Defendant provided an email from counsel that attaches an email that counsel asserts is from Defendant’s supervisor. While the general rule is that evidence should not be submitted with a Reply, the Court has discretion to consider evidence submitted with a Reply so long as the opposing party is provided notice and an opportunity to be heard. *Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal. App. 5th 480, 499. In this instance, the Court considers the evidence, but does not admit it. This email is hearsay with no exception. There is no declaration provided by the supervisor.

Plaintiff argues that the presumption in Evid. Code § 647 applies. “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” Evid. Code § 647. Kristie Butler indicated that she is not a process server in California. The presumption in Evid. Code § 647 does not apply.

The competent evidence before the Court is the Proof of Service of Summons and Defendant’s Declaration. The Court does not find that the screenshot from the Motus Application has been properly authenticated. Even if it were, the timeframe at issue is less than thirty minutes. Defendant provided no evidence of how he received the papers and makes no mention of his wife in his declaration. Defendant did not provide a declaration from his wife. When balancing this against the statements in the Proof of Service of Summons, the Court finds that Defendant has not met his burden. Defendant has been properly served.

The Motion to Quash Service of Summons is **DENIED**. Defendant provided a proposed order that will be modified to reflect the Court’s ruling.

IN RE J.G. WENTWORTH ORIGINATIONS, LLC

CASE NUMBER: 26CV-0209619

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor is Jerry Whipp. The operative petition is the Second Amended Petition filed on June 15, 2026.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires

that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that “Interested parties” means, with respect to a structured settlement agreement, the payee, the payee’s attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee’s death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is “fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.” Section 10137(a). Payee seeks to transfer:

- 24 monthly life contingent payments of \$139.99 each, increasing annually by 4% beginning February 3, 2027 and ending January 3, 2029,
- 60 monthly life contingent payments of \$437.02 each, increasing annually by 4% beginning February 3, 2029 and ending January 3, 2034, and
- 108 monthly life contingent payments of \$2,212.53 each, increasing annually by 4% beginning February 3, 2034 and ending January 3, 2043.

In exchange, Payee will get \$52,651. Mr. Whipp is 48 years old and divorced. He has no minor children and is unemployed. He states in his declaration that he receives \$2,824.89 per month from his annuity, however Exhibit F shows that he presently receives \$3,500 per month. He does not have any court-ordered child support obligations. He has completed eight prior transactions transferring his annuity. He states that he is experiencing financial hardship. If approved, he will use the funds to pay fines that stem from a cultivation case and complete home repairs.

The Court intends to inquire of Mr. Whipp at the time of hearing regarding his understanding of the terms of the agreement in addition to the discrepancy in what he currently receives monthly from his annuity. The Court may deny or defer ruling on the petition if the Court believes that the payee does not fully understand the proposed transaction and that independent legal or financial advice should be obtained, pursuant to Insurance Code 10139.5(b)(14). Petitioner did not provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order. **An appearance by Mr. Whipp is necessary on today’s calendar.**

IN RE: JAIMEZ PARADA

CASE NUMBER: 26CV-0210313

Tentative Ruling on Petition for Change of Name: Petitioner Isaac Jaimez Parada seeks to change his name to Isaac Jaimez Parada. The change will make Jaimez Petitioner’s middle name instead of part of his last name. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: LABRASH

CASE NUMBER: 26CV-0210308

Tentative Ruling on Petition for Change of Name: Petitioner Melissa Sue Luce seeks to change her name to Melissa Sue LaBrash. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

LVNV FUNDING LLC VS. PEREDO

CASE NUMBER: 25CV-0208454

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 14, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement